

54 & 55 Vict.
c. 39.
62 & 63 Vict.
c. 9.
7 Edw. 7. c. 13.

2. Local bonds shall be exempt from stamp duty under the Stamp Act, 1891, and no duty shall be chargeable under section eight of the Finance Act, 1899, as amended by section ten of the Finance Act, 1907, in respect of the issue of any such bonds.

3. The provisions of section one hundred and fifteen of the Stamp Act, 1891 (which relates to composition for stamp duty), shall, with the necessary adaptations, apply in the case of any local authority by whom local bonds are issued as if those bonds were stock or funded debt of the authority within the meaning of that section.

8 & 9 Geo. 5.
c. 40.

4. A local authority shall, in the case of any person who is the registered holder of local bonds issued by that authority of a nominal amount not exceeding in the aggregate one hundred pounds, pay the interest on the bonds held by that person without deduction of income tax, but any such interest shall be accounted for and charged to income tax under the third case of Schedule D. in the First Schedule to the Income Tax Act, 1918, subject, however, to any provision of that Act with respect to exemption or abatement.

5. Local bonds issued by a local authority shall be accepted by that authority at their nominal value in payment of the purchase price of any house erected by or on behalf of any local authority in pursuance of any scheme under the Housing Acts, 1890 to 1919.

6. The Minister may, with the approval of the Treasury, make regulations with respect to the issue (including terms of issue), transfer and redemption of local bonds and the security therefor, and any such regulations may apply, with or without modifications, any provisions of the Local Loans Act, 1875, and the Acts amending that Act, and of any Act relating to securities issued by the London County Council or by any other local or public body.

CHAPTER 100.

An Act to amend the Law with respect to the supply of electricity. [23rd December 1919.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

ELECTRICITY COMMISSIONERS.

Appointment
of Electricity
Commis-
sioners.

1.—(1) For promoting, regulating, and supervising the supply of electricity there shall be established as soon as may be after the passing of this Act, a body to be called the Electricity Commissioners, who shall have such powers and duties as are conferred on them by or under this Act, and, subject thereto, shall act under the general directions of the Board of Trade.

(2) The Commissioners, not exceeding five in number, of whom one shall be chairman, shall be appointed by the Board of Trade: in the case of two of the Commissioners the term of

office shall be such as may be fixed by the Board of Trade at the time when the appointment is made; the other Commissioners shall hold office during His Majesty's pleasure.

(3) Three of the Commissioners shall be whole-time officers.

(4) Three of the Commissioners shall be selected for practical, commercial, and scientific knowledge and wide business experience, including that of electrical supply.

(5) A person shall be disqualified for being appointed or being a Commissioner if he has, directly or indirectly, any share or interest in any undertaking for the supply of electricity, otherwise than as a ratepayer in the case of an undertaking of a local authority.

(6) The Commissioners may act by two of their number and notwithstanding a vacancy in their number.

(7) The Electricity Commissioners may appoint a secretary and such inspectors, officers and servants as the Commissioners may determine, and there shall be paid out of the fund hereinafter established to the Commissioners, and to the secretary, inspectors, officers, and servants of the Commissioners, such salaries and remuneration, and on retirement such pensions or gratuities as the Board of Trade may determine, and any expenses incurred by the Commissioners in the exercise and performance of their powers and duties under this Act, shall be defrayed out of the said fund.

(8) Every document or instrument purporting to be an order or instrument issued by the Commissioners, and to be signed by the secretary to the Commissioners, or any person authorised to act on behalf of the secretary, shall be received in evidence, and be deemed to be such order or instrument without further proof unless the contrary is shown.

2. The Board of Trade may exercise through the Electricity Commissioners any of their powers and duties under the Electric Lighting Acts or the orders or regulations made thereunder or under any local Acts relating to the supply of electricity or under any enactment relating to matters incidental to such supply. Exercise of powers through Electricity Commissioners.

3. The Electricity Commissioners may, either by themselves or through any joint electricity authority established under this Act, or any authorised undertakers, or other competent body, conduct experiments or trials for the improvement of the methods of electric supply or of the utilisation of fuel or water-power, and, subject to the approval of the Board of Trade, incur such expenditure as may be necessary for the purpose. Power to conduct experiments.

4. The Electricity Commissioners may appoint a committee or committees consisting of chairman or other members of joint electricity authorities established under this Act, or representatives of authorised undertakers or other specially qualified persons for the purpose of giving to the Commissioners advice and assistance on such matters connected with the Advisory Committee.

general improvement and development of the supply of electricity as may be referred to the committee by the Commissioners, and the Commissioners shall take into consideration any representations which have been made to them by any such committee.

REORGANISATION OF SUPPLY OF ELECTRICITY.

Electricity
districts.

5.—(1) The Electricity Commissioners may provisionally determine that any district in the United Kingdom shall be constituted a separate electricity district for the purposes of this Act, and, in considering what areas are to be included in a district, areas shall be grouped in such manner as may seem to the Commissioners most conducive to the efficiency and economy of the supply of electricity and to convenience of administration. Before finally determining the area of any such district, the Electricity Commissioners shall publish notice of their intention so to do and of the area proposed to be included in such district, and shall also give notice thereof to all county councils, local authorities, and authorised undertakers any part of whose county district or area of supply is proposed to be included in the electricity district, and, if any objection or representation be made on account of the inclusion in or the exclusion from the proposed district of any area, the Electricity Commissioners shall hold a local inquiry with reference to the area to be included in the proposed district:

Provided that, where a local inquiry is held as hereinafter provided regarding the improvement of the organisation of the supply of electricity in any district, the area of that district shall not be finally determined until after that inquiry has been held.

(2) Where it appears to the Electricity Commissioners with respect to any electricity district so provisionally determined that the existing organisation for the supply of electricity therein should be improved, the Commissioners shall give notice of their intention to hold a local inquiry into the matter, and shall give to authorised undertakers, county councils, local authorities, railway companies using or proposing to use electricity for traction purposes, large consumers of electricity, and other associations or bodies within the district which appear to the Commissioners to be interested, an opportunity to submit, within such time as the Commissioners may allow, a scheme or schemes for effecting such improvement, including proposals for altering or adjusting the boundaries of the district and, where necessary, the formation of a joint electricity authority for the district.

(3) If no such scheme is submitted within the time so allowed, or if no scheme submitted is approved by the Commissioners, the Commissioners may themselves formulate such a scheme.

(4) The Electricity Commissioners shall publish, in such manner as they think best adapted for ensuring publicity, any scheme which they have approved, with or without modifications, or which they have themselves formulated, and shall hold a local inquiry thereon.

6.—(1) A scheme under the last-foregoing section may provide for the establishment and (where desirable) the incorporation with power to hold land without licence in mortmain, of a joint electricity authority representative of authorised undertakers within the electricity district, either with or without the addition of representatives of the council of any county situate wholly or partly within the electricity district, local authorities, large consumers of electricity, and other interests within the electricity district, and, subject as hereinafter in this Act provided, for the exercise by that authority of all or any of the powers of the authorised undertakers within the electricity district, and for the transfer to the authority of the whole or any part of the undertakings of any of those undertakers, upon such terms as may be provided by the scheme, and the scheme may contain any consequential, incidental, and supplemental provisions which appear to be expedient or proper for the purpose of the scheme, including provisions determining the area included in the electricity district :

Joint electricity authorities.

Provided that no such scheme shall provide for the transfer to the authority of any part of an undertaking except with the consent of the owners thereof.

(2) The scheme may provide for enabling the joint electricity authority to delegate, with or without restrictions, to committees of the authority any of the powers or duties of the authority, and for the payment out of the revenues of the authority of travelling and subsistence expenses of members of the authority, and reasonable compensation for loss of remunerative time.

7.—(1) The Electricity Commissioners may make an order giving effect to the schemes embodying decisions they arrive at as the result of such inquiry as aforesaid, and present the order for confirmation by the Board of Trade, who may confirm the order either without modification or subject to such modifications as they think fit.

Confirmation of schemes.

(2) Any such order shall be laid, as soon as may be after it is confirmed before each House of Parliament, but shall not come into operation unless and until it has been approved either with or without modification by a resolution passed by each such House, and when so approved shall have effect as if enacted in this Act.

(3) An order made under this section may be altered by a subsequent order made, confirmed, and approved in like manner as the original order.

8.—(1) It shall be the duty of every joint electricity authority constituted under this Act to provide or secure the provision

General powers and duties of joint electricity authorities.

of a cheap and abundant supply of electricity within their district, and for that purpose every such authority shall have such powers and duties as are conferred or imposed upon them by the scheme under which they are constituted or by this Act with respect to—

- (a) the supply of electricity within their district (including the construction of generating stations, main transmission lines, and other works required for the purpose);
- (b) the acquisition of the undertakings or parts of the undertakings of authorised undertakers;

and such powers incidental thereto, as are in the scheme or in this Act mentioned, and every such authority shall comply with any general directions given to them by the Electricity Commissioners as to the exercise and performance of their powers and duties.

(2) A joint electricity authority may, with the approval of the Electricity Commissioners, establish or join with any other such authority in establishing a scheme for the payment of superannuation allowances and gratuities to any of their officers and servants who become incapable of discharging their duties by reason of permanent infirmity of body and mind or old age upon their resigning or otherwise ceasing to hold office, and the expenses incurred under any such scheme shall be treated as part of the expenses of the authority in carrying out their powers and duties under this Act.

GENERATING STATIONS.

Power to
acquire
generating
stations, &c.

9. A joint electricity authority may, with the consent of the Electricity Commissioners, by agreement with the owners thereof acquire any generating station or any main transmission line from any such station on such terms as may be agreed.

Right to use
for generating
stations land
acquired for
that purpose.

10. Where a joint electricity authority or any authorised undertakers are authorised by order made after the passing of this Act to acquire or use any land for the purpose of a generating station, no person shall be entitled to restrain the use of the land for that purpose.

Restrictions on
the establish-
ment of new
generating
stations.

11. Notwithstanding anything in any special Act or order in force at the passing of this Act, it shall not be lawful for any authority, company, or person to establish a new or extend an existing generating station or main transmission line without the consent of the Electricity Commissioners (which consent shall not be refused or made subject to compliance with conditions to which the authority, company, or person object, unless a local inquiry has been held) but this restriction shall not apply to the establishment or extension of a private generating station; provided that, in the case of the establishment of a new private generating station, the owner thereof

shall comply with any regulations made by the Electricity Commissioners as to the type of current, frequency, and pressure to be used ; but such regulations shall be so framed as not to interfere with the economical and efficient working of the business for which the supply is generated :

Provided that, in the case of a railway company using or proposing to use electricity for traction, and in the case of the owners of a dock undertaking regulated by Act of Parliament using or proposing to use electricity for the purposes of their undertaking, consent shall not be refused unless it is proved to the satisfaction of the Electricity Commissioners that a joint electricity authority or authorised undertakers are or will be willing and in a position to give the railway company or owners a supply of electricity, adequate in quantity and regularity to meet the present and prospective demand of the railway company or owners, at a cost not greater than would have been incurred by the railway company or owners in supplying themselves :

Provided also that—

- (a) where a group of persons carrying on or intending to carry on businesses in which large quantities of electricity are used for purposes other than for provision of mechanical power or light propose to establish a generating station for the purposes of such businesses ; or
- (b) where a manufacturer, having a business in which electricity can be generated from energy derived from a process of manufacture carried on in his premises, proposes to establish a generating station for the purpose of supplying electricity not only for his own business but also to other manufacturers whose businesses are associated therewith ;

the Electricity Commissioners may authorise the establishment by or on behalf of those consumers or that manufacturer, of a generating station, subject to the condition that any surplus electricity generated beyond that required by those consumers or, as the case may be, by the business of that manufacturer or the associated businesses shall (if required by the Electricity Commissioners) be supplied to the joint electricity authority, or any authorised undertakers, at such prices as the Electricity Commissioners may think fit and proper, and may by order authorise the exercise of such other powers (including the breaking up of roads, railways, and tramways) as may be necessary for the purpose of such supply, and the generating station shall be treated for the purposes of this Act as though it were a private generating station.

POWERS OF JOINT ELECTRICITY AUTHORITIES.

12.—(1) A joint electricity authority shall have power to supply electricity within their district subject to the following

Powers of
joint elec-
tricity autho-
rities in respect

of the supply
of electricity.

limitations, that is to say, the authority shall not supply electricity—

- (a) in any area which for the time being forms part of the area of supply of any authorised distributors without the consent of those distributors, except to railway, canal, or inland navigation companies or authorities for the purposes of traction or haulage, or for lighting vehicles and vessels for the haulage or traction of which electricity is supplied, or for the purpose of charging or re-charging electric vehicles not running on rails; or
- (b) in any part of the area of supply of a power company for any purpose for which the company are therein authorised to supply electricity, without the consent of the company, except to the previous owner of a generating station which has been transferred to the joint electricity authority or for the purpose of charging or re-charging electric vehicles not running on rails:

Provided that, where the authorised distributors or power company refuse or withhold their consent, the joint electricity authority may appeal to the Electricity Commissioners as to whether the consent is unreasonably refused or withheld, and the Board of Trade on the recommendation of the Electricity Commissioners may dispense with such consent if in their opinion it is unreasonably refused or withheld, and the consent shall be deemed to be unreasonably refused or withheld if the authorised distributors or power company are not willing and in a position to give the requisite supply upon reasonable terms and within a reasonable time, and in considering what are reasonable terms and what is a reasonable time the Board of Trade shall amongst other things have regard to the terms upon which and the time within which the joint electricity authority and the authorised distributors or power company are respectively willing and able to give the supply, and, where the authorised distributors or power company are themselves supplied by the joint electricity authority, the terms upon which they are so supplied, including the period of time for which such terms are to be binding.

(2) This Act shall, in relation to every joint electricity authority, be deemed to be a special Act for the purposes of the Electric Lighting Acts, and every joint electricity authority shall be deemed to be undertakers within the meaning of those Acts, and for the purposes of this section there shall be incorporated with this Act the provisions of the schedule to the Electric Lighting (Clauses) Act, 1899, subject to such exceptions and modifications as may be prescribed by the order constituting the joint electricity authority:

62 & 63 Vict.
c. 19.

51 & 52 Vict.
c. 12.

Provided that sections two and three of the Electric Lighting Act, 1888 (which relate to the purchase of undertakings by

local authorities), shall not apply to the undertakings of joint electricity authorities.

(3) Subject to the limitations hereinbefore contained on the powers of a joint electricity authority to supply electricity, the Electricity Commissioners may by order, after such inquiry as they think fit, impose on any joint electricity authority an obligation to supply electricity in such circumstances, within such areas, and on such terms and conditions as to price and otherwise as may be specified in the order.

13.—(1) Any local authority being authorised distributors may, with the consent of the Electricity Commissioners, agree with the joint electricity authority of the district in which the area of supply of the local authority or any part thereof is situated for the transfer to the joint electricity authority of the whole or any part of the undertaking of the local authority within that district: Transfer of undertakings to joint electricity authorities.

Provided that, where part of the area of supply of the local authority is situated in a locality which is not included in an electricity district, the powers of purchasing that part may, if the Electricity Commissioners consent, be exercised by a joint electricity authority within whose district any part of the area of supply is situated.

(2) Where under the Electric Lighting Acts, or under any order made thereunder or under any special or local Act, any right to purchase the whole or any part of the undertaking of any authorised distributors is vested in any local authority (including a county council), the right may, by any order under this Act constituting a joint electricity authority for the district comprising the area of the local authority, be transferred to and vested in the joint electricity authority, subject to the order providing for adequate representation on the joint electricity authority of the local authority from whom the right is transferred, and, on any such right being so transferred, the Order or Act conferring the right shall be construed accordingly, and any question as to the adequacy of such representation shall be determined by the Electricity Commissioners:

Provided that, if the area of the local authority is situate partly in the district of one joint electricity authority and partly in that of another, the right shall be transferable to such one of those joint electricity authorities or divisible between them as the Electricity Commissioners may determine, and where part of such area is situate in a locality which is not included in an electricity district the right of purchasing that part may, if the Electricity Commissioners consent, be transferable to a joint electricity authority within whose district any part of such area is situate.

(3) Where any such right as aforesaid becomes exerciseable before the date of the constitution of a joint electricity authority, the right shall not be exercised by the local authority without the consent of the Electricity Commissioners, and such

consent may be given subject to such conditions as the Commissioners may think fit, and it shall be lawful for the local authority to comply with any conditions so imposed.

(4) A joint electricity authority with the consent of the Electricity Commissioners may at any time acquire the whole or any part of the undertaking of any authorised undertakers not being a local authority, by agreement, and it shall be lawful for any such undertakers to sell their undertaking or any part thereof to a joint electricity authority.

Special provisions as to power companies.

14.—(1) The Electricity Commissioners may, on the application of a joint electricity authority, by order exclude from the area of supply of any power company any part of that area which at the time of the application is not being supplied by the company, and which it appears to the Electricity Commissioners could be better served by the joint electricity authority, and in consideration therefor may, if they think fit, confer on the power company power to supply electricity for all purposes in other parts of their area of supply which do not at the time form part of the area of supply of any authorised distributors :

Provided that, if the power company, or any county council, local authority, or authorised undertakers which appear to the Electricity Commissioners to be interested, object to the proposed order, effect shall not be given to the proposals except by special order.

Subsidiary powers of joint electricity authorities.

15.—(1) The Board of Trade, on the representation of the Electricity Commissioners, may by order authorise any joint electricity authority or any authorised undertakers to abstract water from any river, stream, canal, inland navigation or other source, and to do all such acts as may be necessary for the purpose of enabling the joint electricity authority or authorised undertakers to utilise and return the water so abstracted, subject to such conditions as may be specified in the order, but the Board shall not in any case make such an order until notice of their intention to make the order has been given by advertisement or otherwise as the Board may direct and an opportunity has been given to any person who appears to the Board to be affected of stating any objections he may have thereto, and such order may provide for the recovery in a summary manner of penalties for infringement of the order :

Provided that—

- (a) where the source from which the water is to be abstracted is a canal, inland navigation, or harbour regulated by Act of Parliament, or where any existing rights of riparian owners will be affected by the abstraction of the water, the order authorising the abstraction shall be a special order, and shall provide that the water not consumed shall, subject to any agreement to the contrary, be returned at a level not lower than that at which it was abstracted ; and

- (b) the order shall require that all water not consumed (and in no case less than ninety-five per centum of the water abstracted) shall be returned in a condition not less pure than when it was abstracted and at a temperature not higher than such as may be specified in the order (which temperature shall be fixed at such a degree as appears to the Board necessary to avoid injury to public health or to fisheries, if any, or in the case of a canal or inland navigation to the works thereof, or to vessels using the same, or to the trade or business carried on by any person using the same for the purposes of or in connection with his trade or business); and
- (c) no order shall be made authorising the abstraction of water from any dock regulated by Act of Parliament except with the consent of the owners thereof and subject to such terms and conditions as may be agreed; and
- (d) in any order authorising the abstraction of water from the Manchester Ship Canal there shall be inserted such provisions as the Board of Trade may consider adequate for preventing interference with the navigation of the canal.

(2) A joint electricity authority and any local authority, company, or person may, with the consent of the Electricity Commissioners, enter into arrangements for the utilisation, for the purposes of the joint electricity authority, of water power, waste heat, or other form of energy which the local authority, company, or person may be able to dispose of, or for the supply by the joint electricity authority of any form of energy other than electricity, and, where such an arrangement has been made, the joint electricity authority may be authorised by order to exercise such powers (including the power to break up roads, railways, and tramways) as may be necessary for the purpose of conveying such energy:

Provided always that such joint electricity authority, local authority, company, or person shall in no case have the power to enter into arrangements for the supply by the joint electric authority of any form of energy, other than electricity, in any area or district within which any undertakers may be authorised by Parliament to supply such form of energy unless and until such undertakers consent thereto, and then only upon such terms and conditions as may be agreed upon with such undertakers.

(3) The purposes for which a joint electricity authority may be authorised to acquire compulsorily or use land under section one of the Electric Lighting Act, 1909, shall include the 9 Edw. 7. c. 34. development of water-power for the generation of electricity.

(4) A joint electricity authority may, with the consent of the Electricity Commissioners, erect, maintain, alter, improve,

and renew by-product plant with all necessary machinery and apparatus, and do all such acts as may be proper for working up and converting the residual products arising directly or indirectly from the generation of electricity :

Provided that, where it appears to the Electricity Commissioners that the establishment of any such by-product plant could properly be undertaken by any existing company, authority, or person, a joint electricity authority shall not establish such plant without first giving to such company, authority, or person an opportunity of so doing.

Compensation
for deprivation
of employ-
ment.

16. If after the eighth of May nineteen hundred and nineteen, and within five years from the date when under this Act a transfer of the whole or any part of an undertaking has been effected, or a scheme for the improvement of the supply of electricity in any district has come into operation, or an agreement or arrangement between various authorised undertakers for the rendering of mutual assistance to one another has been entered into, any officer or servant who has, before the said eighth day of May, been regularly employed in or about the undertaking or any authorised undertaking proves to the satisfaction of a referee or a board of referees appointed by the Minister of Labour that in consequence of this Act he—

- (i) has suffered loss of employment, or diminution of salary, wages or emoluments, otherwise than on grounds of misconduct, incapacity, or superannuation ; or
- (ii) has relinquished his employment in consequence of being required to perform duties such as were not analogous or were an unreasonable addition to those which before the said eighth day of May he had been required to perform ; or
- (iii) has been placed in any worse position in respect to the conditions of his service (including tenure of office, remuneration, gratuities, pension, superannuation, sick or other fund, or any benefits or allowances, whether obtaining legally or by customary practice), and the body to which the undertaking or part thereof was transferred, or, as the case may be, the authorised undertakers who are affected by the scheme or are parties to the agreement or arrangement, do not show to the satisfaction of the referee or board of referees that equivalent employment on the like conditions as those obtaining with respect to him, at the date when the scheme comes into operation, or the agreement or arrangement is entered into, was available, there shall be paid to him by that body or those undertakers, or such of them as the referee or board of referees may think just, such compensation as the referee or board of referees may award, including any expenses which the officer or servant necessarily incurs in removing to another locality :

Provided that such compensation shall, in the case of an officer employed on an annual salary, be based on but not

exceed the amount which would have been payable to a person on abolition of office under the Acts and rules relating to His Majesty's Civil Service in force at the date of the passing of the Local Government Act, 1888, but, in computing the period of service of any officer, service under any authorised undertakers shall be reckoned as service under the authorised undertaker in whose employment he is at the time that he suffers such loss or diminution as is mentioned in this section; and, where any such officer or servant was temporarily absent from his employment whilst serving in or with His Majesty's Forces or the forces of the Allied or Associated Powers, or in any other employment of national importance during the present war, such service shall be reckoned as service under the authorised undertakers in whose employment he was immediately before and after such temporary absence.

51 & 52 Vict.
c. 41.

17. A joint electricity authority before incurring any capital expenditure above such amount as the Electricity Commissioners may prescribe shall submit for approval to the Electricity Commissioners such details, plans, and estimates with respect to the proposed expenditure as the Electricity Commissioners may require.

Submission of
plans, &c.,
with respect
to capital
expenditure.

TRANSITORY PROVISIONS.

18.—(1) It shall be lawful for the Board of Trade, after consultation with the Electricity Commissioners, at any time after an electricity district has been provisionally determined and before the establishment of a joint electricity authority for the district, and for two years after the establishment of any such authority, with the consent of such authority, to construct any generating station, main transmission line, or other works, and exercise any other powers which a joint electricity authority can or can be authorised to exercise under this Act :

Power of Board
of Trade to
construct in-
terim works.

Provided that, where the Board of Trade propose to construct a generating station before the establishment of a joint electricity authority for any district, the Electricity Commissioners shall consult with the county councils, local authorities, and authorised undertakers any part of whose county, district, or area of supply is within the electricity district as provisionally determined as to the site of the proposed station.

(2) The Treasury may issue to the Board of Trade out of the Consolidated Fund of the United Kingdom, or the growing produce thereof, any sums not exceeding in the aggregate twenty million pounds, required for the construction of any such works or the acquisition of land for that purpose, or required for providing working capital for such works, on such terms and conditions as to interest, repayment, and otherwise as the Treasury may think fit.

The Treasury may, if they think fit, at any time for the purpose of providing for the issue of sums out of the Consolidated Fund under this section or for the repayment to that

fund of all or any part of the sums so issued, or for the paying off of any security so issued under this subsection so far as that payment is not otherwise provided for, borrow money by means of the issue of Exchequer Bonds, and all sums so borrowed shall be paid into the Exchequer.

Any sums received on account of the payment of principal or interest on the advances made to the Board of Trade shall be paid into the Exchequer, but any part of sums so paid which represents the repayment of principal shall be transferred to the National Debt Commissioners and applied by them as and when they think fit in purchasing or paying off as occasion requires any securities issued under this subsection, and sums so applied shall be invested and accumulated by the said Commissioners.

The principal of and interest on any Exchequer Bonds issued under this subsection shall be charged on and payable out of the Consolidated Fund of the United Kingdom or the growing produce thereof.

(3) At the expiration of two years after the establishment of a joint electricity authority for any district, or at any earlier time which may be agreed on between the Board of Trade and the joint electricity authority, any generating station, main transmission lines and other works, and any land acquired for the purpose thereof by the Board of Trade under this section which are situate within the electricity district, shall vest in that authority, subject to the payment by the joint electricity authority to the Board of Trade of such sum as may be certified by the Treasury to be sufficient to repay the advances made by them to the Board of Trade (including the cost of redeeming any of the securities issued under the preceding subsection) in respect of the construction of and provision of working capital for such works, and the acquisition of such lands, and any interest thereon which may be outstanding, after deducting the amount applied or applicable towards the repayment of the sums issued to the Board of Trade for defraying that cost.

(4) The prices, fixed by the Board of Trade for electricity supplied by them from generating stations established under this section, shall be such that their receipts therefrom will be sufficient to cover their expenditure on income account (including interest and sinking fund charges in respect of such advances as aforesaid) with such margin as the Board may think fit.

Power of
authorised
undertakers to
render mutual
assistance to
one another.

19.—(1) During the period between the passing of this Act and the establishment of a joint electricity authority for a district, any two or more of the authorised undertakers within the locality may, with the approval of the Electricity Commissioners, and if so required by the Electricity Commissioners shall, enter into and carry into effect arrangements

for mutual assistance of the one by the other, with regard to all or any of the following purposes :—

- (a) The giving and taking of a supply of electricity and the distribution and supply of the electricity so taken :
- (b) The management and working of the generating stations or any part of the several undertakings of the undertakers who are parties to any such arrangement :
- (c) The provision of capital required for carrying into effect, and the appropriation and division of receipts arising under, any such arrangement :
- (d) Any matters or things incidental or connected with any of the purposes aforesaid :

and the arrangement shall be made on such terms and conditions as may be agreed, or, if the arrangement is made in pursuance of a requirement by the Electricity Commissioners, on such terms and conditions as in default of agreement may be settled by those Commissioners :

Provided that the authorised undertakers entering into any such arrangement shall remain and be subject to all and the same obligations and liabilities to all persons not being parties to the arrangement as they would have been subject to if no such arrangement had been entered into.

(2) Where such an arrangement has been made, any authorised undertakers who are parties to the arrangement may be authorised by order to exercise such powers (including the power to break up roads, railways, and tramways) as may be necessary for the purpose of carrying the arrangement into effect.

(3) The provision of capital required for giving effect to any such arrangement, and the payment of interest on any such capital raised for the purpose of effecting intercommunication or development of supply in bulk, whilst the expenditure remains unremunerative, shall be purposes for which a local authority may borrow under the Electric Lighting Acts.

AMENDMENTS OF ELECTRIC LIGHTING ACTS.

20. There shall be transferred to the Electricity Commissioners the powers of the Minister of Health and the Secretary for Scotland and the London County Council with respect to the sanctioning of borrowing by local authorities under the Electric Lighting Acts, or under any special Act or order relating to the supply of electricity, but in exercising the powers so transferred the Electricity Commissioners shall act in consultation with the Department or Council from which the powers were transferred.

Transfer of powers of certain departments.

21. Where the consent of the Board of Trade is obtained to the placing of any electric line above ground in any case, the

Overhead wires.

consent of the local authority shall not be required, anything in the Electric Lighting Acts, or in any order or special Act relating to the undertaking to the contrary notwithstanding, but the Board of Trade before giving their consent shall give the local authority an opportunity of being heard.

Wayleaves.

22.—(1) A joint electricity authority or any authorised undertakers may place any electric line below ground across any land, and above ground across any land other than land covered by buildings or used as a garden or pleasure ground in cases where the placing of such lines above ground is otherwise lawful, and where any line has been so placed across any land the joint electricity authority or undertakers may enter on the land for the purpose of repairing or altering the line :

Provided that, before placing any such line across any land, the joint electricity authority or undertakers shall serve on the owner and occupier of the land notice of their intention, together with a description of the nature and position of the lines proposed to be so placed ; and if, within twenty-one days after the service of the notice, the owner and occupier fail to give their consent or attach to their consent any terms or conditions or stipulations to which the joint electricity authority or the undertakers object, it shall not be lawful to place the line across that land without the consent of the Board of Trade ; and the Board of Trade may, if after giving all parties concerned an opportunity of being heard they think it just, give their consent either unconditionally or subject to such terms, conditions, and stipulations as they think just ; and in deciding whether to give or withhold their consent, or to impose any terms, conditions, or stipulations (including the carrying of any portion of the line underground) the Board shall, among other considerations, have regard to the effect, if any, on the amenities or value of the land of the placing of the line in the manner proposed.

(2) The power of placing lines across land conferred by this section shall include the power of placing a line across or along any railway, canal, inland navigation, dock or harbour, subject to the rights of the owners thereof and to the following conditions :—

(a) In respect of any electric lines placed or proposed to be placed across any line of railway from side to side thereof sections fifteen, sixteen, nineteen, twenty, and seventy-seven of the schedule to the Electric Lighting (Clauses) Act, 1899, shall, without prejudice to any protection given to the railway company by the Electric Lighting Acts and this Act, apply as though the said electric lines were placed or proposed to be placed in accordance with powers contained in a special order as defined in the Electric Lighting (Clauses) Act, 1899 :

(b) In respect of any electric lines placed or proposed to be placed across any canal or inland navigation from

side to side thereof, whether by being carried above or below ground, sections fifteen, nineteen, and seventy-seven of the schedule to the Electric Lighting (Clauses) Act, 1899, shall, without prejudice to any protection given to the owners of the canal by the Electric Lighting Acts and this Act, apply as though the said electric lines were placed in accordance with powers contained in a special order, as defined in the Electric Lighting (Clauses) Act, 1899 :

- (c) In respect of any electric lines placed or proposed to be placed over or upon or under any line of railway along its course, the provisions contained in the proviso to subsection (1) of this section shall not apply, and in lieu thereof the following conditions shall apply :—

(i) Failing agreement between the joint electricity authority or authorised undertakers proposing to place such electric lines and the railway company, the joint electricity authority or authorised undertakers may apply to the Board of Trade, who may decide either that the lines shall not be so placed or may refer the question to the Railway and Canal Commission, and that Commission may, after an inquiry, make an order for the placing of the electric lines, subject to such pecuniary terms as the Commission think just, or refusing to allow such lines to be placed, and any such inquiry may be held by any one or more of the members of the Commission or by an officer appointed by the Commission for the purpose, and Parts I. and IV. of the Railway and Canal Traffic Act, 1888 (except the sections relating to appeals), shall apply as far as applicable to any such inquiry, and any officer appointed to hold the inquiry shall have power to administer an oath ;

51 & 52 Vict.
c. 25.

(ii) The joint electricity authority or authorised undertakers shall, upon receiving notice in writing from the railway company, remove or alter within a reasonable time, and to the reasonable satisfaction of the railway company, any such electric lines which shall interfere with the existing or any proposed works of the railway company or the traffic thereon : Provided that, if within twenty-one days after receipt of such notice the joint electricity authority or authorised undertakers object to the removal or alteration required by such notice, a difference shall be deemed to have arisen, which shall be referred to and determined by the Railway and Canal Commission ;

(iii) Save as herein provided, sections fifteen, sixteen, nineteen, twenty, and seventy-seven of

the schedule to the Electric Lighting (Clauses) Act, 1899, shall, without prejudice to any protection given to the railway company by the Electric Lighting Acts and by this Act, apply as though the said electric lines were placed in accordance with powers contained in a special order as defined in the Electric Lighting (Clauses) Act, 1899 :

- (d) In respect of any electric lines placed or proposed to be placed over or upon or under any canal or inland navigation along its course, the provisions contained in the proviso to subsection (1) of this section shall not apply, and in lieu thereof the following conditions shall apply :—

(i) The provisions of paragraphs (c) (i) and (c) (ii) of this subsection shall apply as in the case of railways and for that purpose the expression “ railway company ” shall mean the owners of the canal or inland navigation :

(ii) Save as herein provided, sections fifteen, sixteen, nineteen, and seventy-seven of the schedule to the Electric Lighting (Clauses) Act, 1899, shall, without prejudice to any protection given to the owners of canals by the Electric Lighting Acts and this Act, apply as though the said electric lines were placed in accordance with powers contained in a special order as defined in the Electric Lighting (Clauses) Act, 1899 :

- (e) No electric line shall be placed in the tunnels of any tube railway within the Metropolitan Police area, except with the consent of the company owning such railway :

- (f) In respect of any electric lines placed or proposed to be placed across any lands or works forming part of any dock or harbour undertaking regulated by Act of Parliament, whether by being carried above ground or below ground, sections fifteen, sixteen, seventeen, nineteen, and seventy-seven of the schedule to the Electric Lighting (Clauses) Act, 1899, shall, without prejudice to any protection given to the authority owning or managing the undertaking by the Electric Lighting Acts and this Act, apply as though the said electric lines were placed in accordance with powers contained in a special order as defined in the Electric Lighting (Clauses) Act, 1899 :

- (g) The sections of the schedule to the Electric Lighting (Clauses) Act, 1899, by this subsection applied to canals, inland navigations, docks and harbours, and lands or works forming part thereof, shall apply thereto as if references in those sections to streets

and persons liable to repair streets and to canals and canal companies included, respectively, canals, inland navigations, docks and harbours, and lands and works forming part of a dock or harbour, and the authority owning or managing the same.

(3) For the purposes of this section, any company or body or person entitled by virtue of any Act of Parliament to receive tolls or dues in respect of the navigation on or use of any canal, inland navigation, dock or harbour shall be deemed to be owners of such canal, inland navigation, dock or harbour.

(4) Section fourteen of the schedule to the Electric Lighting (Clauses) Act, 1899, so far as it relates to the Postmaster-General, shall be incorporated with this section, and shall apply to the execution of any works which will involve the placing of lines across or along any land, whether below ground or above ground, under this section in like manner as it applies to the execution of works which will involve the placing of lines in, under, along, or across any street or public bridge.

(5) Nothing in this section shall prejudice or affect the rights of the Postmaster-General in relation to railways, canals, docks, and harbours under the Telegraph Acts, 1863 to 1916, or any agreement or award made thereunder, or shall operate in such a manner as to interfere with or involve additional expense in the exercise of any such rights.

(6) A notice under this section may be served on the owner or occupier of any land by delivering it to him, or by leaving it or forwarding it by post addressed to him at his usual or last known place of abode, and may be addressed by the description of the owner or occupier of the lands (naming them) without further name or description.

23.—(1) A joint electricity authority and any local authority authorised by special Act or by order to supply electricity may provide, let for hire, and in respect thereof may connect, repair, maintain and remove (but shall not, unless expressly authorised to do so by the special Act or order, manufacture or sell) electric lines, fittings, apparatus and appliances for lighting, heating and motive power and for all other purposes for which electricity can or may be used, and with respect thereto may demand and take such remuneration or rents and charges, and make such terms and conditions, as may be agreed upon.

(2) Any electric lines, fittings, apparatus, and appliances provided by or on behalf of any authorised distributors on consumers' premises either before or after the passing of this Act, and any lands, buildings, or works held by them in connection therewith shall be deemed to form part of the undertaking authorised by the special Act or order relating to such authorised distributors.

24. The Electricity Commissioners may require any authorised undertakers to amend or alter the type of current, frequency

Supply of
apparatus.

Alteration of
type of
current, &c.

or pressure employed by them in their undertaking, and the execution of the works necessary to comply with such an order shall be a purpose for which a local authority may borrow under the Electric Lighting Acts: Provided that this section shall not apply to electricity generated at a railway generating station existing at the passing of this Act, and that, if on appeal by any authorised undertakers, the Board of Trade are satisfied that compliance with the order would entail unreasonable expense, the Board of Trade may direct that the order shall not apply to those undertakers, or apply only subject to such conditions as the Board of Trade may prescribe.

Amendment of
s. 26 of Act of
1882.
45 & 46 Vict.
c. 56.

25. Section twenty-six of the Electric Lighting Act, 1882 (which contains provisions for the protection of the Postmaster-General), shall have effect as if the words "or the laying of "connections with mains where the direction of the electric lines so laid down crosses the line of the Postmaster-General "at right angles at the point of shortest distance, and continues the same for a distance of six feet on each side of such "point" were omitted, and as if for the words "not more than "twenty-eight nor less than seven clear days" there were substituted the words "one month, or, in the case of the laying "of service lines to consumers' premises, seven clear days."

Substitution of
special for
provisional
orders.

26. Anything which under the Electric Lighting Acts may be effected by a provisional order confirmed by Parliament may be effected by a special order made by the Electricity Commissioners and confirmed by the Board of Trade under and in accordance with the provisions of this Act, or by an order establishing a joint electricity authority under this Act, and references in those Acts and the Electric Lighting (Clauses) Act, 1899, to provisional orders shall be construed as including references to such special orders and orders as aforesaid, except that the paragraphs numbered (1) to (4) of section four of the Electric Lighting Act, 1882, shall not apply to such special orders and orders as aforesaid, and any provisional order made under the Electric Lighting Acts and confirmed by Parliament may be amended or revoked by any such special order or order as aforesaid:

Provided that a special order made in pursuance of the powers conferred by this section shall be laid before each House of Parliament, and shall not come into force unless and until approved, either with or without modifications, by a resolution passed by each such House.

Power to
require
accounts,
statistics, and
returns.

27. It shall be the duty of joint electricity authorities and authorised undertakers to furnish to the Electricity Commissioners at such times and in such form and manner as the Commissioners may direct such accounts, statistics, and returns as they may require for the purposes of their powers and duties under this Act.

FINANCIAL PROVISIONS.

28.—(1) Every joint electricity authority shall establish a fund to which all receipts by the authority shall be carried, and out of which all payments by the authority shall be made.

Revenue and
expenditure of
joint
electricity
authorities.

(2) Every joint electricity authority shall annually, at such time as the Electricity Commissioners may fix, submit to the Electricity Commissioners such a statement of income and expenditure on revenue account as the Electricity Commissioners may require.

(3) The accounts of every joint electricity authority and their officers shall be audited by auditors appointed by the Electricity Commissioners, and the audit shall be conducted in accordance with such regulations as may be prescribed by the Electricity Commissioners, and the regulations may apply with the necessary modifications the provisions relating to the accounts and audit of accounts of county councils and their officers.

(4) Every joint electricity authority shall, annually at such date and in such form as the Electricity Commissioners may prescribe, make to the Electricity Commissioners a report of their proceedings during the preceding year.

29.—(1) The Electricity Commissioners shall, at the beginning of each financial year, prepare an estimate of their receipts and expenditure during the year, and submit it for approval by the Board of Trade.

Expenses of
Electricity
Commis-
sioners.

(2) The Electricity Commissioners shall apportion the amount by which the estimated expenses so approved exceed the estimated receipts so approved amongst the several joint electricity authorities and authorised undertakers within the United Kingdom in proportion to the number of units of electricity generated by or on behalf of those authorities and undertakers respectively in the preceding year; and every such authority or undertaker shall, on demand from the Electricity Commissioners, pay to them as a contribution towards their expenses the sum so apportioned:

Provided that, during the first two years after the passing of this Act, the amount of such excess shall be paid out of moneys provided by Parliament, but such payments shall be treated as advances and shall be repaid, with interest at such rate as the Treasury may fix, by the Commissioners by equal annual instalments in the next three succeeding years.

(3) All sums received by the Commissioners shall be paid into a separate fund, and out of that fund the salaries, remuneration, pensions and gratuities of the Commissioners, their secretary, officers, and servants and all expenses incurred by the Commissioners shall be paid, and the Treasury may determine that that fund shall be a public fund within the meaning of the Superannuation Act, 1892.

55 & 56 Vict.
c. 40.

30. Subject to the consent of the Electricity Commissioners, joint electricity authorities or any authorised undertakers may,

Subscriptions
to associations.

out of the revenue of their undertakings, pay reasonable subscriptions, whether annual or otherwise, to the funds of any association formed for the purpose of consultation as to their common interests and the discussion of matters relating to the supply of electricity, and to the funds of any recognised association conducted on a non-profit earning basis for developing the use of electricity, and may purchase reports of the proceedings of any conferences or meetings, and may pay the reasonable expenses of attendance of any members or officers of the joint electricity authority or undertaker at conferences or meetings of the said association or any of them.

GENERAL.

Application to
electricity of
38 & 39 Vict.
c. 86. s. 4.

31. Section four of the Conspiracy and Protection of Property Act, 1875 (which relates to breaches of contract by persons employed in the supply of gas or water), shall extend to persons employed by a joint electricity authority or by any authorised undertakers in like manner as it applies to persons mentioned in that section, with the substitution of references to electricity for the references to gas or water.

Provisions as
to agreements
and arrange-
ments under
this Act.

32.—(1) Where under this Act a joint electricity authority are authorised to enter into an agreement or arrangement with any authorised undertakers or any other authority, company, or person for any purpose, it shall be lawful for those undertakers, authority, company, or person to enter into and carry into effect such an agreement or arrangement.

(2) Where a local authority, as authorised undertakers, enter into an agreement or arrangement with a joint electricity authority or any other authorised undertakers in pursuance of this Act, any expenses incurred by the local authority in carrying the agreement or arrangement into effect shall be deemed to be expenses incurred by them under or in pursuance of the Electric Lighting Acts and the provisions of section seven and section eight of the Electric Lighting Act, 1882, shall apply accordingly, and any moneys received by any such local authority under any such agreement or arrangement shall be deemed to be moneys received by the local authority in respect of their undertaking.

(3) Where by this Act an order may be made conferring on a joint electricity authority or authorised undertakers or other persons such powers as may be necessary for carrying into effect an agreement or arrangement entered into by them under this Act or for doing anything which under this Act they are authorised to do, and amongst the powers to be conferred by the order are included powers of breaking up streets, railways, and tramways other than such as can be broken up under any order or special Act relating to the joint electricity authority or undertakers, the order, unless it is an order made under section seven of this Act, shall be a

special order, and shall apply or incorporate the provisions of the Electric Lighting Acts and the Electric Lighting (Clauses) Act, 1899, relating to breaking up of streets, railways, and tramways.

33.—(1) The Electricity Commissioners may hold, or cause to be held, such inquiries as they consider necessary or desirable for the purposes of this Act, and the Commissioners, and, if authorised by the Commissioners, the person appointed to hold any such inquiry may by order require any person, subject to the payment or tender of the reasonable expenses of his attendance, to attend as a witness and give evidence or to produce documents at the inquiry, and, if any person fails without reasonable excuse to comply with any of the provisions of any such order, he shall be liable on summary conviction to a fine not exceeding five pounds, and the Commissioners or persons holding the inquiry shall have power to take evidence on oath and for that purpose to administer oaths. Power to hold inquiries.

(2) Notices of inquiries may be given and published in accordance with such general or special directions as the Commissioners may give.

34.—(1) The Board of Trade and the Electricity Commissioners may respectively make rules in relation to applications and other proceedings before them under this Act, and to the payments to be made in respect thereof, and to the publication of notices and advertisements and the manner in which and the time within which representations or objections with reference to any application or other proceeding are to be made, and to the holding of inquiries in such cases as they may think it advisable, and to the costs of such inquiries, and to any other matters arising in relation to their powers and duties under this Act. Power to make rules.

(2) Any rules made in pursuance of this section shall be laid before Parliament as soon as may be after they are made, and shall have the same effect as if enacted in this Act.

35.—(1) A special order made under this Act by the Electricity Commissioners shall not have any effect unless and until confirmed by the Board of Trade. Procedure for making special orders.

(2) Sections eighty and eighty-one of the Factory and Workshop Act, 1901, relating to the making of regulations under that Act, as set out and adapted in the Schedule to this Act, shall apply to the confirmation of special orders made under this Act. 1 Edw. 7. c. 22.

(3) Before any special order, other than a special order which is not valid unless approved by a resolution passed by each House of Parliament, comes into force it shall be laid before each House of Parliament for a period not less than thirty days during which that House is sitting, and, if either of those Houses before the expiration of those thirty days presents an Address to His Majesty against the order or any part thereof,

no further proceedings shall be taken thereon without prejudice to the making of any new order.

(4) A special order so made and confirmed as aforesaid shall have effect as if enacted in this Act.

Definitions.

36. In this Act, unless the context otherwise requires—

The expression “Electric Lighting Acts” means the Electric Lighting Acts, 1882 to 1909 :

The expression “authorised undertakers” includes authorised distributors and power companies :

The expression “authorised distributors” means any local authority, company or person, authorised to supply electricity within any area of supply, but does not include a power company except in relation to any supply given by the company under an order made under the Electric Lighting Acts :

The expression “power company” means any company or person (other than a railway company being the owners or lessees of a railway generating station) authorised by special Act to supply electricity to authorised distributors and lighting authorities or to other persons for power purposes, whether with or without a subsidiary power to supply electricity for lighting purposes :

The expression “lighting authority” means any authority, company or person, authorised by any public general or special Act, to undertake or contract for the lighting of streets, bridges or public places :

The expression “generating station” means any station for generating electricity, including any buildings and plant used for the purpose, and the site thereof, and a site intended to be used for a generating station, but does not include any station for transforming, converting, or distributing electricity :

The expression “railway generating station” means a station for generating electricity for use solely or mainly by a railway company for the purposes of their undertaking :

The expression “private generating station” means a generating station for the generation of electricity for use solely or mainly on the owner’s or joint owners’ premises or for the purposes of his or their undertaking or undertakings, or, where the owner is a subsidiary company, solely or mainly on the premises or for the purposes of the undertaking of the principal company, in any case where the undertaking of the owner or the principal company is not an undertaking belonging to authorised undertakers or to a railway, tramway, canal, inland navigation, harbour or other undertaking providing facilities for or incidental to the transport of goods or passengers :

The expression "subsidiary company" means a company under the control of some other company, or companies, whether by reason of the majority of the voting power being vested in the other company or companies, or their nominees or shareholders, or otherwise, and such other company, or companies, are in relation to the subsidiary company, referred to as the principal company.

The expression "main transmission lines" means all extra high-pressure cables and overhead lines (not being an essential part of an authorised undertaker's distribution system or the distribution system of a railway company or the owners of a dock undertaking) transmitting electricity from a generation station to any other generating station, or to a sub-station, together with any step-up and step-down transformers and switch-gear necessary to, and used for, the control of such cables or overhead lines, and the buildings or such part thereof as may be required to accommodate such transformers and switch-gear :

The expressions "railway company" and "railway" have the same meaning as in the Regulation of Railways Act, 1873 : 36 & 37 Vict.
c. 48.

The expression "sinking fund charges" includes any charges for the repayment of loans whether by means of a sinking fund or otherwise.

Other expressions have the same meaning as in the Electric Lighting Act, 1909.

References to orders under the Electric Lighting Acts shall include references to deeds of transfer executed in pursuance of powers conferred by those orders.

37. This Act shall apply to Scotland subject to the following modifications :— Application to
Scotland.

(1) "Restrain" includes "interdict" :

(2) In appointing advisory committees under section four of this Act, the Electricity Commissioners shall appoint a committee for Scotland.

38. This Act shall apply to Ireland, subject to the following modification :— Application to
Ireland.

A reference to the Local Government Board for Ireland shall be substituted for any reference to the Minister of Health.

39.—(1) All the powers and duties of the Board of Trade under this Act or the Electric Lighting Acts, or the orders and regulations made thereunder, or any local Act relating to the supply of electricity, or any enactment relating to matters incidental to such supply shall, as from such date as His Majesty in Council may fix, be transferred to the Minister of Transport, and accordingly references to the Board of Trade Transfer of
powers of
Board of Trade
to Minister of
Transport.

in any such Acts, orders, regulations, or enactments shall be construed as references to the Minister of Transport :

Provided that the power of appointing Electricity Commissioners under this Act shall be exercised by the Minister of Transport with the concurrence of the Board of Trade.

(2) The Electricity Commissioners shall be solely responsible to the Minister of Transport and, under his direction, shall carry into effect the powers and duties conferred upon them by this Act, and the Minister of Transport shall refer to the Electricity Commissioners for their advice all matters connected with the exercise and performance of the powers and duties transferred to him under this section, except the appointment of the Commissioners and except where any act of, or order by, the Commissioners is by this Act expressly made subject to the approval of or an appeal to the Minister.

Short title and
construction.

40.—(1) This Act may be cited as the Electricity (Supply) Act, 1919, and the Electric Lighting Acts, 1882 to 1909, and this Act may be cited together as the Electricity (Supply) Acts, 1882 to 1919.

(2) This Act shall be construed as one with the Electric Lighting Acts.

Section 35'

SCHEDULE.

PROVISIONS OF THE FACTORY AND WORKSHOP ACT, 1901, APPLIED TO SPECIAL ORDERS MADE UNDER THIS ACT.

80.—(1) Before the Board of Trade confirm any special order under this Act, they shall publish, in such manner as they may think best adapted for informing persons affected, notice of the proposal to confirm the order, and of the place where copies of the order may be obtained, and of the time (which shall not be less than twenty-one days) within which any objection made with respect to the order by or on behalf of persons affected must be sent to the Board of Trade.

(2) Every objection must be in writing and state—

(a) the order or portions of order objected to ;

(b) the specific grounds of objection ; and

(c) the omissions, additions, or modifications asked for.

(3) The Board of Trade shall consider any objection made by or on behalf of any persons appearing to them to be affected which is sent to them within the required time, and they may, if they think fit, amend the order, and shall then cause the amended order to be dealt with in like manner as an original order.

(4) Where the Board of Trade do not amend or withdraw any order to which any objection has been made, then (unless the objection either is withdrawn or appears to them to be frivolous) they shall, before confirming the order, direct an inquiry to be held in the manner hereinafter provided, and may, after considering the report of the person who held the inquiry, confirm the order either without modification or subject to such modification as they think fit, or may refuse to confirm the order.

81.—(1) The Board of Trade may appoint a competent and impartial person to hold an inquiry with regard to any order, and to report to them thereon.

(2) The inquiry shall be held in public, and any objector and any other person who, in the opinion of the person holding the inquiry, is affected by the draft order, may appear at the inquiry either in person or by counsel, solicitor, or agent.

(3) The witnesses on the inquiry may, if the person holding it thinks fit, be examined on oath.

(4) Subject as aforesaid, the inquiry and all proceedings preliminary and incidental thereto shall be conducted in accordance with rules made by the Board of Trade.

(5) The fee to be paid to the person holding the inquiry shall be such as the Board of Trade may direct.

CHAPTER 101.

An Act to make further provision with respect to the Government of India. [23rd December 1919.]

WHEREAS it is the declared policy of Parliament to provide for the increasing association of Indians in every branch of Indian administration, and for the gradual development of self-governing institutions, with a view to the progressive realisation of responsible government in British India as an integral part of the empire:

And whereas progress in giving effect to this policy can only be achieved by successive stages, and it is expedient that substantial steps in this direction should now be taken:

And whereas the time and manner of each advance can be determined only by Parliament, upon whom responsibility lies for the welfare and advancement of the Indian peoples:

And whereas the action of Parliament in such matters must be guided by the co-operation received from those on whom new opportunities of service will be conferred, and by the extent to which it is found that confidence can be reposed in their sense of responsibility:

And whereas concurrently with the gradual development of self-governing institutions in the Provinces of India it is expedient to give to those Provinces in provincial matters the largest measure of independence of the Government of India, which is compatible with the due discharge by the latter of its own responsibilities:

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

PART I.

LOCAL GOVERNMENTS.

1.—(1) Provision may be made by rules under the Government of India Act, 1915, as amended by the Government of India (Amendment) Act, 1916 (which Act,

Classification
of central and
provincial
subjects.
5 & 6 Geo. 5.
c. 61.
6 & 7 Geo. 5.
c. 37.